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FOUR PAWS FEEDBACK TO PROPOSAL for a REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL on the welfare of dogs and cats and their traceability

FOUR PAWS is the global animal welfare organization for animals under direct human influence, which reveals suffering, rescues animals in need and protects them.

We much welcome this Proposal for a Regulation and appreciate the opportunity to provide feedback to it, hoping our input will be useful in further refining it.

KEY AREAS

Scope and Definition: Art. 1

Currently the proposal applies only to dogs and cats (and only those kept or bred in establishments, and kept in shelters), and does not include other animals that are kept in households for leisure and companionship. Different rules in various Member States surrounding the keeping of certain companion animal species cause internal market distortions and create an uneven playing field. Some Member States have enacted or are about to enact positive lists, detailing what type of animals can be kept and traded as companion animals. Other Member States have a negative list or no list at all. An EU-wide positive list of species allowed to be placed on the market would protect animal welfare, public health, biodiversity and the single market. The European Commission is currently carrying out a feasibility study for an EU-wide positive list, which would also help eliminate internal market barriers. The study will conclude in 2025. There is currently no EU law through which such a positive list could be enacted. Adding a provision in this Regulation for the Commission to be empowered to adopt implementing acts would merely open the door to a positive list; it would offer the legal basis that could be activated if necessary and when the time is right, taking into account an impact assessment on added value and feasibility.

Registration of all breeders of cats and dogs: Art. 4

The proposal foresees exemptions from the provisions laid down in Chapter II for those keeping three of less females and producing in total two litters or less per year. We firmly believe **it would be an oversight to not extend the registration obligation to all breeders of cats and dogs, as this would be counter to the objective pursued by the Regulation to achieve a smooth functioning of the internal market for dogs and cats and common welfare requirements. Registration is a simple, non-burdensome administrative process no different to a registration to a Kennel Club, whose set benefit - namely creating the overview of the EU's breeding landscape, would outweigh all, if any, strain for breeders and authorities alike. The same applies for the exceptions foreseen for the very basic welfare requirements related to the breeding, keeping, feeding, health and behavioural needs of these animals, from which small breeders and pet shops are excluded. Not only would that leave thousands of traded animals unprotected, but it would also upkeep distortions in the breeding and trade and undermine consumer protection.**

After all, the registration obligation for breeding establishments is already enshrined in Regulation (EU) 2016/429 - Animal Health Law (AHL), whose Recital (99) stresses the need for a harmonised approach to prevent types of establishments that pose a significant risk to public and animal health from being excluded from registration. On account of the zoonotic hazard it explicitly refers to the risk posed by ***"the breeding of dogs at a level involving a certain continuity of activities and a certain degree of organisation with the primary aim of their being sold for the purpose of becoming pet animals in households".*** **Article 84 of AHL is to be seen as applicable to anyone who breeds dogs and cats for a purpose other than the private keeping of these animals and their offsprings, and without any transfer of responsibility.** Thus Article 84 applies to any establishment wherein animals live in close contact with, or proximity to, humans, are kept and bred and the offspring is given away. It should be stressed that households wherein animals are bred and kept are anyhow subject to the registration obligation (as this proposal also acknowledges), such as when breeders need to use TRACES to move animals cross-border. In the context of addressing barriers to the single market it is irrelevant whether animals are traded nationally or across borders.

Recital (6) of **Implementing Regulation (EU) 2022/1345** to the AHL, clarifies: *''(...) Similarly, dogs, cats and ferrets kept on an establishment for breeding purposes cannot be considered as posing an insignificant risk, especially from a human health perspective''*, while its Article 3 on the *"Types of establishments keeping terrestrial animals that may be by the Member States from the registration requirement''* **emphasizes *"1. Member States may exempt from the registration requirement establishments keeping terrestrial animals posing an insignificant risk, as provided for in Article 85 of Regulation (EU) 2016/429, if the following criteria are fulfilled: (...) (b) no dogs, cats or ferrets are kept for breeding on the establishment;*** *(c) the establishment is not involved in any movement of kept terrestrial animals, germinal products or products of animal origin to or from another Member State or third country; (d) the kept terrestrial animals, germinal products or products of animal origin on the establishment are not intended to be moved out of the establishment.''* As such, we had anticipated the proposed Regulation to not afford any exceptions. That would have been in line with the intentions enshrined in the above Regulations which it would spell out. We therefore regret it shies away from addressing this loophole. The Regulation must finally fully harmonise the breeding and keeping landscape, and decisively address the problem of unregulated activity. Excluding small breeders and pet shops from registration and the other basic requirements applicable to the rest of the establishments will only perpetuate this problem.

The fallacy of excluding breeders keeping up to three females and producing in total two or less litters per establishment and year is that it would keep the door open to the operation of unregulated, undeclared breeders that produce (and trade) a number of animals higher to that which would afford them the exception in the first place. Also it must be noted that it is not uncommon that the activity of members of the same household is often organised in a way that allows them to operate under the guise of small-scale breeders (e.g. by using several addresses) while actually breeding and trading on a much larger scale. Outside the regulatory framework and its welfare requirements, such operators could likely keep attractive prices,

which would likely drive demand and exaggerate the problem, going against the objectives of the Regulation.

The problem of inconsistency between a trader's stated status and actual volume of activities has been stressed on numerous occasions, notably in the 2015 "Study on the welfare of dogs and cats involved in commercial practices" commissioned by DG SANCO; the analysis of the results of the 2018 "**Coordinated Control Plan** on the online sales of cats and dogs" reporting *"Inconsistency between activities and trader's status (..) i.e. private owner selling more than ten dogs/cats per year"*; not least in the 2023 report with the outcomes of the **EU enforcement action on the Illegal trade of cats & dogs** underlining that the problem of movements with commercial intentions under the guise of non-commercial movements *"(...) despite measures taken, it persists. This practice is not only used as part of an organised network of activities, but is also common among smaller breeders to avoiding health requirements, registration in TRACES and skipping the need to provide traceability information. Additionally, it allows for the circumvention of customs rules on prohibitions and restrictions, and furthermore enabling individuals to earn untaxed income by not declaring goods for commercial purposes".* The report goes on to say that *"when the activity of the breeders and puppy traders' businesses is not properly declared, it creates an unfair economic advantage over legitimate sellers who respect law and sanitary obligations. Even though it is difficult to provide exact numbers for underground economy, uncollected sales and undeclared incomes in Europe must be estimated in millions of euro yearly".* The European Parliament in its resolution of 12 February 2020 also emphasized the need for breeder registration.

We therefore believe that for full traceability of dogs and cats as well as of their breeders, each person who breeds dogs or cats, even by accident, should be registered with the competent authority if they intend to give the offspring away, in order to finally close all the loopholes exploited by unscrupulous sellers. Each animal produced must be chipped and registered on the breeder as the first owner.

Identification & Registration (I&R): Art. 17, §1 and §2

We welcome the provisions for the Identification and Registration, yet they are laid down to only apply to animals supplied or placed in the EU's market. **We believe that these provisions must be applied uniformly to all dogs and cats in the EU. We also believe that registration for animals entering the EU from a third country or territory shall start at their country of origin, at a database there.** Anything less would be an oversight, largely maintaining the existing divergent framework of I&R in the EU, perpetuating market distortions, also in competition, ultimately failing to address the misuse of the non-commercial movement rules for commercial purposes, with a significant traceability deficit.

We need to stress that it is inherent in any dog or cat to become part of economic activity. To that, it is essential to underline that EU law has never operated on the basis that it can only relate to existing barriers to trade or competition, but not to those that may likely arise in the future. EU law operates with the objective of eliminating existing and foreseen

barriers to trade. Such barriers are just as damaging to the integration of the EU's single market, as those that already exist. We would like to provide the definition of the CJEU, the concept of ''goods'' within the meaning of Art. 28 TFEU as "products which *can* be valued for money and which are capable, as such, of forming the subject of commercial transactions'' – which clearly covers pets. In principle, Treaty provisions on free movement of goods apply irrespective of whether the goods concerned are being transported cross-border for sale or resale, or for personal use or consumption. **The fact that they are merely capable of being valued for money and the subject of commercial transactions means that dogs and cats can be treated as akin to goods that come within the scope of the Treaty.** Also, the Treaties cannot only apply to cross-border movements. Therefore, activities related to economic activity, are subject to the TFEU's provisions on goods, competition law, the receipt of state aid, indirect tax, and if those services ever be the subject of the award of a public contract, procurement law.

The fallacy of applying I&R solely on animals actually traded, is that no one can know at the birth of a litter, if all, some or none of these animals will in fact be traded (as in transfer of responsibility). We strongly believe it is critical to have a system that allows all animals' age, keepership/ownership and veterinary information to be verifiably recorded and registered on a database, and that can provide such proof anytime, including at the point of transfer. A system where I&R was only mandatory for animals actually traded would only oblige registration of such critical information at the time when a transfer is taking place, which may be months, or even years after birth. As such, this retroactive registration would make the data for those animals less reliable, and more prone to manipulation – e.g. on the age, origin etc. It is worth stressing that there is no reason, also supported by literature, to not perform identification to puppies and kittens as soon as they are born, considering the even more reduced size of the needle carrying the transponder. Edits to information such as the date of birth, breed, sex, origin, and the listing of identity-verified previous and current owners/keepers (starting from the breeder as first owner)- whose identification information should be verified at registration - shall not be possible. Animals not currently traded can still „disappear'' later, whether through sale, run away, abandonment, or rehoming, and will not be traceable, which would give rise to the risk of unreliable information, as a result of only becoming mandatory at some later date. Also, reliable verification of the veterinary status of lost, abandoned and roaming animals would not be possible.

For consumers, acquiring trafficked animals and accepting to not be provided with traceability information because of likely lower prices would mean greater public health risk – because of the limited data on the animals, the conditions in which they were bred, age, health etc. The same accounts for lost or abandoned animals, which might carry contagious diseases, but their origins cannot be reconstructed, when they were not properly registered. The recording of information on all cats and dogs would also facilitate deployment of stray animal population control strategies, a measure supported by bodies like the World Organisation on Animal Health, and a source of significant public revenue spending. Strays are of economic interest, when deployment of management projects is subject to competition and assigned to contractors, who are often reimbursed pro rata the number of caught, treated, transported animals. Further, just like animals of breeders, stray animals could be subject to rehoming, which the ECJ sees as an economic activity, anytime across their lifespan. Again, we wish to highlight that the mere fact that some regulation may capture animals that may eventually

never cross borders is irrelevant, not being an aspect of the test as to whether Article 114 TFEU may be used to address obstacles to trade and distortions in the market. Meaning, it is not necessary to demonstrate an actual link between regulation that applies to every single pet bred or kept to enable relying on Art. 114 TFEU – such precondition is contrary to the law and would wrongly limit the available scope of Art. 114 TFEU.

Registration verification in the online trade (Art. 17, §4)

We very much support the provisions laid down for the verification of the due registration of the animal. However, we trust that a system that would be integrated in online platforms, such as a software, would be an effective, non-burdensome and user-friendly measure that would guarantee to platforms and consumers that the animal about to be advertised is registered at a traceable seller. **This does not impose a general monitoring obligation duty and is in line with the objectives and provisions of the Digital Services Act** (Regulation (EU) 2022/2065) We believe it is important that the due registration of animals to the advertiser is provided and not simply offered as an option for consumers to verify.

This is what FOUR PAWS and the reference registry Europetnet had in mind when developing the "VeriPet" software, which can check the cross-border registration status of traded animals. VeriPet connects online platforms to databases and helps verify if an animal is registered to the person offering it: When creating an advert, the seller must enter the animal's chip number in a field and provide the mobile phone number listed in the pet registry. If this data combination matches with the data kept in the pet registry, VeriPet automatically sends to the phone number listed in the registry under this chip a one-time code that is necessary for the ad to be posted. Only the registered owner will get this code. Thus, before the ad is live, it is guaranteed that the animal is duly registered onto the advertiser, all in a GDPR-compliant way. This validation ensures traceability of the advertiser and consumer protection in the pet trade. In this video you can see how it works.

VeriPet is up and running in Ireland by database FIDO and marketplace dogs.ie (voluntary use for sellers) - in green check mark you can see the ads that have gone through it. Also, clicking on the check mark next to the microchip number, shows and allows to review non-sensitive registered information on the animal, which are pulled from and provided by the database. A VeriPet pilot project was also concluded in Switzerland, by the national animal registry Amicus, and by Anibis.ch - one of the country's biggest online classified advertisement platforms.

We need to stress that the option for consumers to verify an offered animal's registration status to the advertiser, using an *external* validation website may not deter illegal sellers from using classified ad sites. Plus, it would require extra consumer and seller awareness efforts, with questionable results. An *integrated version* through which all advertised dogs and cats would have to go through, would more efficiently provide for a safer trade.

Europetnet (EPN), which FOUR PAWS has worked with, is a group of public, private, national and regional databases that operate across Europe, holding ownership information about pets identified with a transponder. EPN is a Europe-wide connectivity initiative, whose job is to

reunite lost pets with their owners and their services are available from anywhere at any time. EPN can search chips internationally and show chronologically the registration history of an animal, thus in which of its member databases the animal is / was ever registered at. It can do so because its member databases share with it the microchip numbers they hold and their respective dates of registration and dates of updates. This allows to immediately identify both the database that holds the latest information on a microchip and on the keeper, as well as tracing the animal back to its origin (feel free to use mock chip number *123456789101112* on its search engine to chronologically see the registration history of an animal in various databases, in several countries). EPN can help bring transparency in trade through the VeriPet software. It is an example of international database interoperability that provides EU-wide traceability and authenticity of animal registrations, in a secure way.
It works with a centralised interoperability model: core meta data is stored centrally and the system points back to the database where the detailed data on the pet and its owner is stored. This differs from a system of database-to-database interoperability, which requires all databases to talk to each other, and thus requires direct integrated search capabilities at all times.

Database interoperability (Art. 19, §2)

While we trust the requirement for database interoperability is a non-burdensome one, as similar systems already exist for the registration of other animal species, and for the exchange of veterinary information, we would encourage consideration of a system that would provide a swift way of database communication. Such a system could be provided by EUROPETNET which is described further above and has been operational for over 20 years now, ensuring individual animal traceability, also in the online trade.

Pet Shops (Art. 4, 7, 12)

We believe that **pet shops cannot provide an environment suitable for the species-appropriate needs and the welfare of the offered animals** based on the Five Domains Model[1-3]. This is particularly relevant for the mental state of an animal, i.e. notably considering the distress caused by the keeping in a restricted environment (e.g. display enclosures) where animals of different species are kept and are frequently visited by consumers, with restrictions both in terms of the keeping conditions, as well as the socialisation and exercise. **Potential stressors in the pet shop environment are multisensory, e.g. sounds, smell, sight etc., the constant exposure to unfamiliar humans (and other animals), and the handling by pet shop employees and prospective buyers**[4]. Puppies, kittens and virtually all animals offered in pet shops, are supplied by commercial breeding facilities. For these animals (the early) maternal separation also at a normal weaning age can influence their behaviour and cause problems when being adult[5-7].

Pet shops provide a convenient channel to the market for such animals, also allowing embellishment of the conditions in which they may have been bred and kept to appeal to the

consumers. Usually, the prospective owners are unable to see where and how the displayed animal was bred and raised, how it interacted with its mother and siblings, or if it received appropriate veterinary, husbandry care and any socialisation.

Limited opportunities for species-appropriate socialisation and not optimal early environments can lead to behavioural problems and aggression towards the owner during adulthood[8]. **Several studies using dog owner surveys have shown that dogs bought from a pet shop displayed a higher frequency of different undesired adulthood behaviours compared to dogs from, for example, non-commercial and commercial breeders**[4,9,10]. The most common finding in all of these studies was an increased human-directed aggression towards other dogs. The most consistent type of aggression was towards the owners and family members. Another significant finding was the amount of enhanced fear towards humans and other dogs.

Another crucial concern is what happens to the animals if they are not sold within a certain time period[11]. The sale of animals in pet shops promotes irresponsible pet ownership and impulse buying. For example, animals may be bought on impulse at a pet shop due to someone feeling sorry for them or a fashion trend, or because they looked cute, or/and are readily available. The prospective owner may not have even considered buying a pet until they were in this environment, and therefore did not consider the implications of owning a pet, whether the pet matches their lifestyle, or the life-time care ensued. This is often at the expense of animals, not least public finance - with local governments and shelters often having to bear the burden associated with the care and management of relinquished animals.

We firmly believe that a ban on the sale of animals in pet shops will not pose a threat to their operation. At least 12 Member States have outlawed the sale of cats and dogs in pet shops, while in several others, consumers and the sector's self-regulation have compensated for the lack of banning legislation, moving away from this outdated practice[1]. The reason is that thousands of pet shops, from small stores to large chains, operate under a lucrative business model that relies less on the sale of dogs and cats, and increasingly focuses on pet products and services to generate revenue. It is worth noting that such prohibition for pet shops to sell puppies and kittens (but also other small animals, like rabbits) would not impact small-scale breeders, who generally do not sell animals through pet shops, but work directly with interested prospective owners, out of interest to meet them in person and ensure the best possible match for their litter. Moreover, many breed clubs and associations strongly discourage their members from supplying pet shops. Finally, it should be noted that even in countries where the commercial sale of cats and dogs is allowed, several pet shops have voluntarily moved away from the practice, often working with rehabilitation groups to assist local governments and shelters in addressing the surplus of homeless animals.

Positive List

[1] https://www.dogandcatwelfare.eu/national-legislation/

Further to cats and dogs, there are thousands of other species, traded in high numbers in the EU, which are also sentient beings, suffering from a lack of regulation in many Member States. The same harmonisation reserved for cats and dogs should be afforded to them, as they too fall under Article 13 TFEU, in which when formulating and implementing policies, including on the internal market, the Union shall *"pay full regard to the welfare requirements of animals*". In the May 2022 AGRIFISH Council, 19 Member States voiced support for an impact assessment on the added value and feasibility of an EU positive list. **The Commission has begun this study, which will be concluded in 2025.** It would be an oversight to not use the opportunity afforded by this proposal to include an empowerment for the Commission to act upon the findings, if and when necessary and without this representing a commitment for the Commission to establish a positive list. **Adding a provision for an Implementing Act would simply offer the legal basis that could be activated if needed and when the time is right.** In addition to internal market harmonisation this topic is crucial to combat illegal trade and rising heath risks.

Extreme breeding (Art. 6, §3)

Although the Proposal says that breeding strategies should not result in genotypes and phenotypes that have detrimental effects on the welfare of dogs and cats, it notes that brachycephalic traits will be allowed, provided the welfare consequences associated with this breeding will be minimized. Not only is this provision very vague, but it too risks remaining an empty letter, since there will always be welfare consequences associated with brachycephalic dogs. They will suffer by the very nature of being bred this way. **A clear definition on extreme breeding and extreme features must be introduced, as well as a health and welfare certification system covering all the particularities of each extreme breed feature.** For example, the inclusion of existing scientifically substantiated measuring methods that can be used to quantify objectively the morphological characteristics of short-muzzled dogs related to the risks of developing Brachycephalic Ocular Syndrome (BOS) and Brachycephalic Obstructive Airway Syndrome (BOAS). **A ban on their import, advertisement and use for exhibition and competition of animals with extreme features is necessary**. We trust a prohibition of showing brachycephalic breeds or animals with extreme features in exhibitions and competitions since the blueprint for the "perfect" example of such breeds goes against their health and welfare. Normalising such breeds and features through media exposure has an impact on (impulsive) purchasing for which a prohibition should also be included. (See the Extreme Breeding in Europe-mapping of legislation report).

Mutilations (Art. 15, §1)

There should be a **harmonised ban on mutilations, with no exemptions** for small establishments - breeders on pet shops – which, under this proposal, would still be allowed to sell animals with mutilations. The placement, supply, advertisement and use on exhibitions/competitions of animals mutilated for reasons other than medical requirements shall be prohibited. However, it is understandable that shelters are exempted from this ban,

and they should subsequently provide the new acquirers with documentation as proof of adopting a mutilated animal.

Tethering (Art. 14 §3)

Tethering except for the duration of a medical treatment, shall be **prohibited regardless of the amount of time**. We would suggest removing the specific reference to the time (*for more than 1 hour)* as duration would be very difficult to control. Misconduct would require submission of evidence (pictures, footage) for days in a row, at different times, to prove continuity of the tethering in time, which would be largely unfeasible, making enforcement impossible. Not least because a number of medical treatments last over an hour.

Killing (Art. 13, §2)

The killing of healthy animals as part of stray animal population control strategies has proven to be an ineffective measure. **When it comes to animals in establishments (which seem to be those the Commission is considering for this proposal) it is unthinkable to consider situations where people other than vets are allowed to perform euthanasia – which is a veterinary procedure that can be only performed by a vet.** What should also be added in the Article on euthanasia is the following: *"under anesthesia and prolonged analgesia, and is only performed if it is established by the veterinary and behavioural examination that the animal is either suffering from an incurable disease or is completely incapable of self-preservation or is dangerous and keeping them alive is manifestly contrary to the rules of their well-being."*

Artificial insemination

Artificial insemination must not be used as a default or to overcome problems due to the inability of the dogs or cats to mate and conceive naturally. It may only be **considered exceptionally**, such as to increase genetic variability, and must only be performed by a veterinarian.

Electric collars (Art. 15, §3)

The **selling, import, advertisement, manufacturing and use of equipment on dogs and cats that can deliver electrical shocks**, such as electronic shock collars for training or containment (invisible fencing), and pinch or prong collars should be **prohibited** for all cats and dogs.

Health (Art. 13, §3)

We firmly believe that from a veterinarian perspective, three pregnancies in two years are classified as stressful as they are associated with physiological and mental strain for the animals. **We recommend that the number shall be reduced to two pregnancies in two years.** This is all the more relevant for brachycephalic breeds, for which the high prevalence of obstructed labour requires Caesarean section in most cases, perpetuating unnecessary

suffering, also through the abusive use of artificial insemination, as natural mating is almost impossible. As such, **we recommend that breeding with animals that have undergone a Caesarean section should be prohibited**. In the case of animals in which a caesarean section was necessary due to breeding-related anatomical and physiological changes, bitches should be excluded from breeding from the first caesarean section. Bitches that have had a caesarean section for other reasons should be banned from breeding from the second caesarean section onwards.

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